

As to personal estate.—As to personal estate an alien *friend* might, although an alien *enemy* could not, be the lawful owner of chattels personal, and might exercise the ordinary rights of proprietorship over them, and consequently might create a trust.

“Naturalization Act, 1870.”—Now by the “Naturalization Act, 1870,” (a) which came into operation on 12th May, 1870, real and personal property of every description may be taken, acquired, held, and disposed of by an alien in the same manner in all respects as by a natural born British subject, (b) and a title to real and personal property of every description may be derived through, from, or in succession to an alien in the same manner in all respects as through, from, or in succession to a natural born subject, but this is not to “qualify an alien for any office or any municipal, parliamentary, or other franchise,” and the enactment is not to affect any disposition or devolution before the date of the Act. (c)

14. **Traitors, felons, and outlaws.**—With regard to *Traitors, Felons, and Outlaws*, a distinction by the old law was taken between *real* and *personal* estate. In *high treason*, *lands*, whether held in fee simple, fee tail, (d) or for life, were *upon attainder* forfeited absolutely to the Crown—and in all *other felonies* the profits of the land were *upon attainder* forfeited to the Crown during the *life* of the offender. Subject to these superior rights of the Crown by forfeiture, and to the year, day, and waste of the Crown, (e) *land*, in cases of *petit treason* and *murder*, (and until the statute of 54 G. 3, c. 145, in all cases of felony,) escheated upon the death of the offender, by reason of the corruption of blood caused by

houses for residence or occupation by him or his servants, or for the purpose of any business, trade or manufacture for any term not exceeding 21 years.

(a) 33 Vic. c. 14.

[(b) This section enables a foreigner to dispose of property in England by will, but in the case of personality the form of will must, if the testator be domiciled abroad, be subject to the laws of his domicile. In

the goods of Von Buseck, 6 Pr. D. 211; Bloxam v. Farre, 8 Pr. D. 101; 9 Pr. D. 130.]

(c) See as to this Sharp v. St. Sauveur, 7 L. R. Ch. App. 351.

(d) 26 Hen. 8. c. 13. See 2 Bac. Ab. 576, 580.

(e) Attainder was also necessary to entitle the Crown to the year, day and waste. Rex v. Bridger, 1 M. & W. 145.